pesticide's registration. See 40 CFR §154.10. And EPA's decision in response to such a petition is subject to judicial review. See 7 U. S. C. §§136n(a), 136d(h).[10]

As demonstrated by that comprehensive regulatory regime, EPA possesses a variety of tools to learn of and address new safety information. And as a matter of law, state tort law may not impose labeling requirements "in addition to" or "different from" federal requirements imposed under FIFRA.

* * *

With respect to pesticide labels, FIFRA demands "[u]niformity" and expressly preempts state labeling requirements that are "in addition to" or "different from" federal labeling requirements. §136v(b). Durnell's state-law failure-to-warn claim would require a cancer warning on Roundup's label—a requirement "in addition to" and "different from" the label required by EPA under FIFRA. FIFRA therefore expressly preempts Durnell's claim. We reverse the judgment of the Missouri Court of Appeals and remand the case for further proceedings not inconsistent with this opinion.

It is so ordered.

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JUSTICE THOMAS, concurring.

I agree with the Court's interpretation of the Federal Insecticide, Fungicide, and Rodenticide Act and its application of our preemption precedents. I therefore join its opinion in full. I write separately to call attention to some of the underlying constitutional infirmities in the Act.

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[10] If a citizen becomes aware of new safety concerns that arise after registration, the citizen is free to bring the information to EPA's attention and ask EPA to cancel or suspend the pesticide's registration, or require a labeling change. But that is quite different from seeking to *retroactively* penalize a manufacturer for doing what it was legally required to do at the time.

First, the Act likely exceeds Congress's authority under the Commerce Clause, which authorizes Congress to regulate "Commerce . . . among the several States." Art. I, § 8, cl. 3. This power allows Congress to regulate "selling, buying, and bartering" across state lines. *United States* v. *Lopez*, 514 U. S. 549, 585 (1995) (THOMAS, J., concurring). It does not allow Congress to regulate "agriculture" or "manufacturing," activities entirely "separate" from "commerce." *Id.*, at 586.

The Act is a "comprehensive regulatory statute" that appears to regulate more than the Commerce Clause allows. *Ruckelshaus* v. *Monsanto Co.*, 467 U. S. 986, 991 (1984). As this Court has acknowledged, the Act "regulate[s] the use, as well as the sale" of pesticides and "regulate[s] pesticides produced and sold in . . . intrastate . . . commerce." *Id.*, at 991–992. The Act, among other things, requires pesticide manufacturers to register their pesticides with the Environmental Protection Agency, submit information about them, and use EPA-approved labels before selling the pesticides anywhere. *Ante*, at 376–378. A manufacturer that does not use the approved label may be subject to civil and criminal penalties, regardless of whether the goods are sold in interstate commerce. *Ante*, at 378. And, the Act goes even further, making it illegal for consumers to *use* registered pesticides in ways inconsistent with their label. 7 U. S. C. §§ 136j(a)(2)(G), 136*l*(b)(2). The Act thereby purports to regulate how an individual who owns pesticide products such as Roundup can use those products, even if he bought them at a locally owned store down the street, and even if he seeks to use them in his own backyard. Accordingly, the Act is likely unconstitutional in many applications.

Second, the Act raises questions about Congress's ability to delegate core legislative power to the EPA. As the Court explains, *ante*, at 377, Congress granted the EPA the authority to issue regulations for carrying out the Act. § 136w(a)(1). The EPA has thereby issued "extensive regulations . . . dic-

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tating what must appear on a pesticide's label." *Ante*, at 377. Through these label regulations, the EPA exercises immense power over private businesses and individuals. Violating certain regulations is a federal offense. § 136j(a)(2)(S). The EPA thus appears to "make substantive rules . . . punishable with fines or imprisonment," a core legislative power that cannot be delegated. *Learning Resources, Inc.* v. *Trump*, 607 U. S. 229, 318 (2026) (THOMAS, J., dissenting).*

Third, and relatedly, the Act raises questions about the extent to which federal agency action can preempt state law, a form of preemption taken for granted by the parties in this case. See Brief for Respondent 37, 39, 43, 49. The Supremacy Clause makes "[t]his Constitution, and the Laws of the United States which shall be made in Pursuance thereof; and all Treaties . . . the supreme Law of the Land." Art. VI, cl. 2. The Constitution, federal law, and treaties thus preempt any conflicting state law. See, *e. g.*, *Wyeth* v. *Levine*, 555 U. S. 555, 584–588 (2009) (THOMAS, J., concurring in judgment). Administrative action appears difficult to fit under the Supremacy Clause. Agency action is not the Constitution. Nor is it a treaty. And, "Laws" are made by Con-

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*Such delegations of broad regulatory authority often benefit large incumbent companies at the expense of smaller competitors and consumers. Incumbent companies "exercise considerable sway over agency rules," S. Prakash, The Sky Will Not Fall, in The Administrative State Before the Supreme Court 293 (P. Wallison & J. Yoo eds. 2022), which they use to lobby for more "favorable regulations" that "protect the existing regulated firms from threats arising from new firms," T. Sowell, Basic Economics: A Citizen's Guide to the Economy 107–108 (2004). Those regulations often enable a "profitable alliance" between corporations and government, as the corporations look "for government to cartelize their industry after private efforts for cartels and monopoly ha[ve] failed." M. Rothbard, The Progressive Era 318 (2017).

This scheme is a perfect example. As the Court explains, EPA approval entails onerous registration requirements, imposing a formidable barrier to entry for any company that, unlike a worldwide chemical conglomerate, lacks the capacity to commission scientific safety and efficacy studies. See *ante*, at 376–380.

gress and the President through bicameralism and presentment. See Art. I, § 7, cl. 2. So, if "agency action qualifies as 'supreme Law,' " then it arguably "violates the Constitution's separation of powers." D. Rubenstein, The Paradox of Administrative Preemption, 38 Harv. J. L. & Pub. Pol'y 267, 334 (2015). On the other hand, if agencies cannot make "Law" their actions seem to fall "beyond the Supremacy Clause's purview" and cannot preempt state law. *Ibid.*

Of course, to the extent that federal agency action is treated with the force of law, regulated parties should likely not be compelled by state law to take contradictory actions. See *Wyeth*, 555 U. S., at 588 (opinion of THOMAS, J.) (agreeing that valid federal regulations can preempt conflicting state laws). But, the difficulty illustrates the consequences of the modern administrative state and our mistaken separation-of-powers jurisprudence. If agencies were not exercising core legislative power, especially through schemes that exceed even Congress's powers, there would be far less occasion to address conflicts between agency actions and state law that the Constitution's Framers would not have envisioned.

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JUSTICE JACKSON, with whom JUSTICE GORSUCH joins, dissenting.

In 2019, John Durnell brought a state-law failure-to-warn claim against Monsanto, an agrochemical company that manufactures and distributes a widely used pesticide called Roundup. Durnell claimed that he had developed non-Hodgkin's lymphoma, a type of blood cancer, due to his two-decade-long use of Roundup. Roundup's label did not (and still does not) include any warning about the risk of developing cancer. Durnell thus sued Monsanto in Missouri state court, alleging that Roundup's label lacked a necessary warning. After a 9-day trial, the jury agreed and awarded Durnell $1.25 million in compensatory damages.

Monsanto argues that 7 U. S. C. § 136v(b)—a provision of the Federal Insecticide, Fungicide, and Rodenticide Act